RATIO / CASE READING SHEET

G.B. v. Latvia

UN Human Rights Committee | CCPR/C/133/D/3124/2018 | Latvia | 2021

Public-reference AI draft | source quotes and PDF pages verified; interpretation needs review

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Forum and procedural stage

The communication was filed before the UN Human Rights Committee under the Optional Protocol (CCPR/C/133/D/3124/2018). The Committee considered admissibility and substantive merits, adopting its decision on 5 November 2021.

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Material facts

In late 2004 Latvian police conducted a special investigative experiment: an undercover officer posed as a drug dealer, induced the author to act as an intermediary, and later charged him with aggravated acquisition and possession of narcotics, leading to a conviction and a ten-year prison term.

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Issue and actual outcome

The author alleged violations of ICCPR articles 14(1)–(2) and 14(6) concerning the presumption of innocence and fair trial. The Committee found the communication admissible and concluded that the State party had breached article 14(1) by failing to examine the incitement claim, but it did not render a merits decision on remedies.

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Deciding body's reasoning

The Committee reasoned that domestic courts relied on unverified information exclusive to the prosecution when assessing the incitement allegation, thereby undermining the procedural guarantees of a fair trial under article 14(1). It emphasized the need for courts to independently verify whether police incitement occurred.

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General comparison factors and limits

The State party argued that the author had not provided specific facts to support a presumption of innocence claim, invoking admissibility bars under articles 3 and 5(2)(a) of the Optional Protocol. The Committee noted that such procedural objections do not preclude review of substantive fair trial violations, highlighting the limited scope of admissibility objections versus merits analysis.

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